

New Hampshire

GENERAL INFORMATION

1. New Hampshire **maintains** a list of eligible surplus lines insurers (see Other Comments section #1).
2. New Hampshire **does** have a Surplus Lines Association.
3. New Hampshire **does not** have an Export List.
4. New Hampshire **does** have an industrial insured exemption (see Appendix C) which will remain in effect.
The NRRA commercial purchaser exemption is also effective.
5. **Surplus lines tax:** 3%, payable by broker (see Other Comments sections #4 and #5).
6. New Hampshire **does** allow domestic surplus lines insurers in the state.

ELIGIBILITY AND FILING REQUIREMENTS (ALL INSURERS)

1. **Application form.**
2. Proof that company is on **Quarterly Listing of Alien Insurers maintained by the International Insurers Department of the NAIC** (Alien).
3. **Eligibility and Filing Requirements** (Foreign).
4. **\$250 non-refundable fee:** payable to “NH Insurance Department”.
5. **Certificate of Compliance** from the Surplus Lines Insurer’s state/country of domicile.
6. Page 3 (liabilities, surplus and other funds) of current Annual Statement or Quarterly Statement to verify having \$20 million in surplus (Foreign).
7. To maintain status on the list of eligible surplus lines insurers the information above must be submitted annually by March 15.

NOTE – Foreign nonadmitted surplus lines insurers that were required to maintain a security deposit in New Hampshire prior to July 21, 2011, may request to have their New Hampshire security deposit released by submitting a written request on company letterhead (no e-mail or faxed request will be accepted).

TYPES OF INSURANCE EXEMPTED FROM SURPLUS LINES REGULATION

1. Transactions in New Hampshire relative to a policy issued or to be issued outside New Hampshire involving insurance on vessels, craft or hulls, cargoes, marine builder’s risk, marine protection and indemnity or other

risk, including strikes and war risks commonly insured under ocean or wet marine forms of policy.

2. Ocean marine insurance.
3. Industrial insurance. (See Other Comments #9).

OTHER COMMENTS OR REQUIREMENTS

1. New Hampshire's eligibility list is available at <https://www.insurance.nh.gov/producersadjusters/surplus-lines>.
2. The New Hampshire DOI requires electronic surplus lines submissions of tax forms and payment processing utilizing NAIC OPTins.
3. Every producer must have stamped in a form approved by the commissioner on the face of the binder or policy the following:

"The company issuing this policy has not been licensed by the state of New Hampshire and the rates charged have not been approved by the commissioner of insurance. If the company issuing this policy becomes insolvent, the New Hampshire insurance guaranty fund shall not be liable for any claims made against the policy."
4. New Hampshire provides for a flat premium tax to be levied on nonadmitted insurance with multiple risks and when New Hampshire is the home state. There is a flat tax of either 3% or 4% depending upon the type of policy.
5. All approved surplus lines insurers are asked to provide the New Hampshire DOI by May 1 with a list of all premiums written in New Hampshire summarized by the surplus lines broker's tax identification number.
6. Surplus lines tax is payable by the producer or the entity that is listed on the declaration's page and is responsible for paying such tax by January 31 of each year. Zero annual statements are required for all individuals and in New Hampshire.
7. Surplus lines policy fees are considered premium and subject to surplus lines premium tax.
8. Surplus lines insurers are only permitted to write property and casualty business in New Hampshire.
9. Per correspondence with the New Hampshire DOI, the types of insurance exempted from surplus lines regulation are still subject to premium tax.

Contact Our Insurance + Reinsurance Team

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